

NHRC AND SHRC

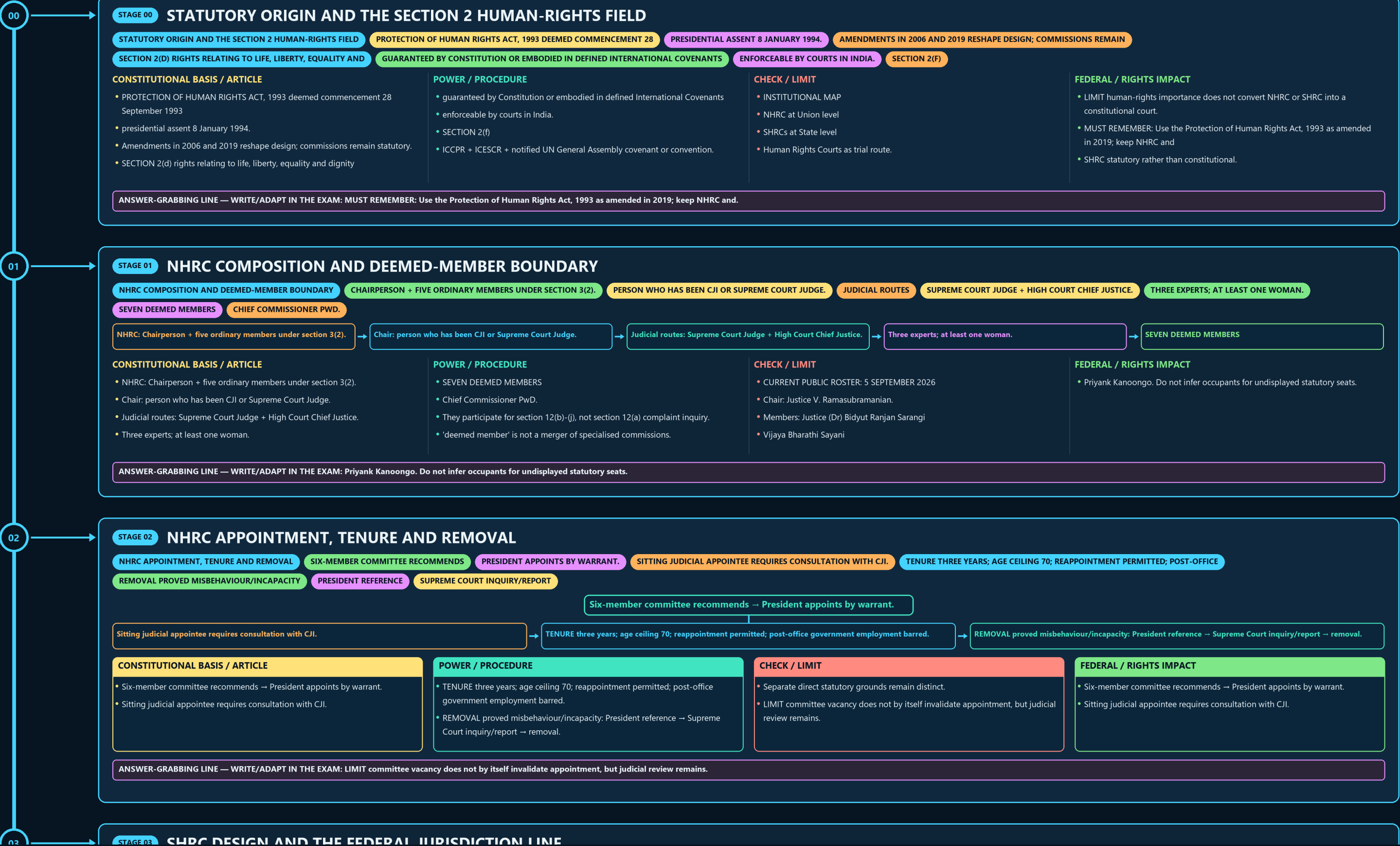
STATUTORY ORIGIN AND THE → NHRC COMPOSITION AND DEEMED-MEMBER → NHRC APPOINTMENT, TENURE AND → SHRC DESIGN AND THE → SECTION 12 FUNCTIONS AND → INVESTIGATION SUPPORT AND PROCEDURAL

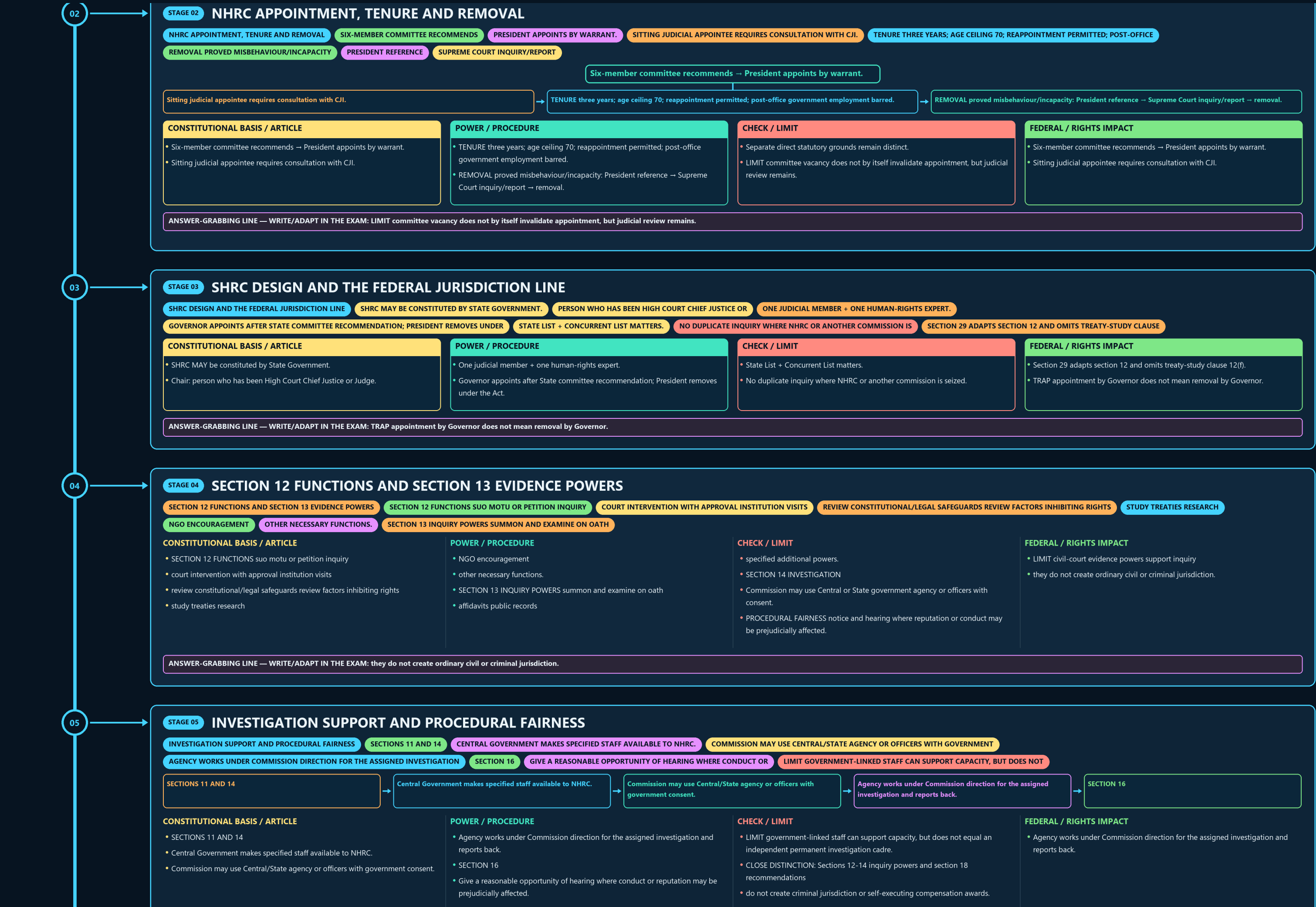
Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

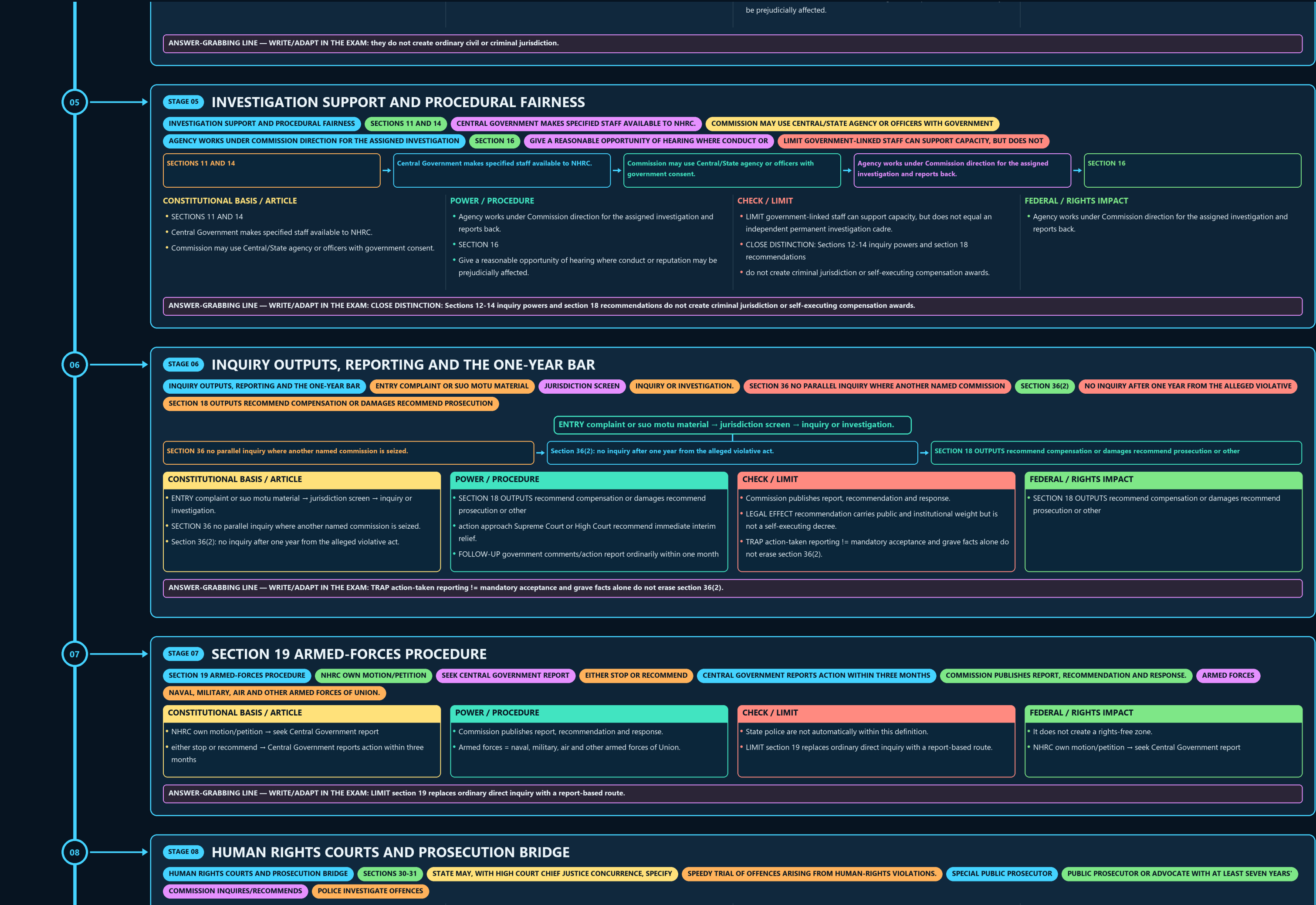
PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • source generation g8 and all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles







07

STAGE 07 SECTION 19 ARMED-FORCES PROCEDURE

SECTION 19 ARMED-FORCES PROCEDURE NHRC OWN MOTION/PETITION SEEK CENTRAL GOVERNMENT REPORT EITHER STOP OR RECOMMEND CENTRAL GOVERNMENT REPORTS ACTION WITHIN THREE MONTHS COMMISSION PUBLISHES REPORT, RECOMMENDATION AND RESPONSE. ARMED FORCES

NAVAL, MILITARY, AIR AND OTHER ARMED FORCES OF UNION.

CONSTITUTIONAL BASIS / ARTICLE

- NHRC own motion/petition → seek Central Government report
- either stop or recommend → Central Government reports action within three months

POWER / PROCEDURE

- Commission publishes report, recommendation and response.
- Armed forces = naval, military, air and other armed forces of Union.

CHECK / LIMIT

- State police are not automatically within this definition.
- LIMIT section 19 replaces ordinary direct inquiry with a report-based route.

FEDERAL / RIGHTS IMPACT

- It does not create a rights-free zone.
- NHRC own motion/petition → seek Central Government report

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT section 19 replaces ordinary direct inquiry with a report-based route.

08

STAGE 08 HUMAN RIGHTS COURTS AND PROSECUTION BRIDGE

HUMAN RIGHTS COURTS AND PROSECUTION BRIDGE SECTIONS 30-31 STATE MAY, WITH HIGH COURT CHIEF JUSTICE CONCURRENCE, SPECIFY SPEEDY TRIAL OF OFFENCES ARISING FROM HUMAN-RIGHTS VIOLATIONS. SPECIAL PUBLIC PROSECUTOR PUBLIC PROSECUTOR OR ADVOCATE WITH AT LEAST SEVEN YEARS'

COMMISSION INQUIRES/RECOMMENDS POLICE INVESTIGATE OFFENCES

CONSTITUTIONAL BASIS / ARTICLE

- SECTIONS 30-31
- State MAY, with High Court Chief Justice concurrence, specify a Court of Session for each district.

POWER / PROCEDURE

- Purpose: speedy trial of offences arising from human-rights violations.
- Special Public Prosecutor: Public Prosecutor or advocate with at least seven years' practice.

CHECK / LIMIT

- Commission inquires/recommends → police investigate offences
- prosecutor presents case → Sessions Court adjudicates.

FEDERAL / RIGHTS IMPACT

- Notification is enabling; do not assume automatic nationwide operation.
- SECTIONS 30-31

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Notification is enabling; do not assume automatic nationwide operation.

09

STAGE 09 OVERLAP, REFERRAL AND SPECIALISED COMMISSIONS

OVERLAP, REFERRAL AND SPECIALISED COMMISSIONS NHRC NATIONAL STATUTORY MANDATE SUBJECT TO PHRA EXCLUSIONS AND SHRC INQUIRES INTO MATTERS RELATABLE TO STATE LIST AND SECTION 29 ADAPTS FUNCTIONS AND OMITTS TREATY STUDY.

NHRC MAY TRANSFER A COMPLAINT TO A COMPETENT SHRC NCSC, NCST AND NCBC HAVE CONSTITUTIONAL SAFEGUARD MANDATES. WOMEN, CHILD, MINORITY AND DISABILITY BODIES HAVE SPECIALISED STATUTORY COORDINATION COMMON INTAKE METADATA

NHRC national statutory mandate subject to PHRA exclusions and transfer rules.

SHRC inquires into matters relatable to State List and Concurrent List

section 29 adapts functions and omits treaty study.

NHRC may transfer a complaint to a competent SHRC under statutory conditions.

CONSTITUTIONAL BASIS / ARTICLE

- NHRC national statutory mandate subject to PHRA exclusions and transfer rules.
- SHRC inquires into matters relatable to State List and Concurrent List
- section 29 adapts functions and omits treaty study.

POWER / PROCEDURE

- NHRC may transfer a complaint to a competent SHRC under statutory conditions.
- NCSC, NCST and NCBC have constitutional safeguard mandates.
- Women, child, minority and disability bodies have specialised statutory fields.

CHECK / LIMIT

- COORDINATION common intake metadata → reasoned referral → no duplicate inquiry
- joint thematic work → preserve specialist voice.
- LIMIT an umbrella merger cannot absorb constitutional commissions through ordinary PHRA amendment.

FEDERAL / RIGHTS IMPACT

- NHRC may transfer a complaint to a competent SHRC under statutory conditions.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT an umbrella merger cannot absorb constitutional commissions through ordinary PHRA amendment.

10

STAGE 10 PARIS PRINCIPLES, ACCREDITATION AND CASE-LAW CONTROLS

PARIS PRINCIPLES, ACCREDITATION AND CASE-LAW CONTROLS PARIS PRINCIPLES, 1993 BROAD MANDATE OPEN APPOINTMENT ADEQUATE RESOURCES STABLE TENURE INDEPENDENT METHODS DOMESTIC TEST PHRA MANDATE AND INQUIRY POWERS VERSUS POLICE/DEPUTATION DEPENDENCE, SHORT

GANHRI CONTROL

PARIS PRINCIPLES, 1993 broad mandate

open appointment

adequate resources stable tenure

independent methods

CONSTITUTIONAL BASIS / ARTICLE

- PARIS PRINCIPLES, 1993 broad mandate
- open appointment
- adequate resources stable tenure
- independent methods

POWER / PROCEDURE

- PHRA mandate and inquiry powers versus police/deputation dependence, short terms, selection opacity and weak follow-up.
- GANHRI CONTROL
- March 2025 SCA recommended B downgrade; India challenged.

CHECK / LIMIT

- CASE CONTROLS
- Paramjit Kaur v. State of Punjab (1999): Court-assigned Article 32 expert role does not erase ordinary PHRA limits.
- N.C. Dhoundial v. Union of India (2003): section 36(2) is jurisdictional

FEDERAL / RIGHTS IMPACT

- NHRC is valuable but neither exclusive nor generally binding.
- Court-assigned expertise may exceed the ordinary route, but autonomous statutory action remains bounded by the PHRA.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT an umbrella merger cannot absorb constitutional commissions through ordinary PHRA amendment.

10

STAGE 10

PARIS PRINCIPLES, ACCREDITATION AND CASE-LAW CONTROLS

PARIS PRINCIPLES, ACCREDITATION AND CASE-LAW CONTROLS

PARIS PRINCIPLES, 1993 BROAD MANDATE

OPEN APPOINTMENT

ADEQUATE RESOURCES STABLE TENURE

INDEPENDENT METHODS

DOMESTIC TEST

PHRA MANDATE AND INQUIRY POWERS VERSUS POLICE/DEPUTATION DEPENDENCE, SHORT

GANHRI CONTROL

PARIS PRINCIPLES, 1993 broad mandate

open appointment

adequate resources stable tenure

independent methods

CONSTITUTIONAL BASIS / ARTICLE

- PARIS PRINCIPLES, 1993 broad mandate
- open appointment
- adequate resources stable tenure
- independent methods
- DOMESTIC TEST

POWER / PROCEDURE

- PHRA mandate and inquiry powers versus police/deputation dependence, short terms, selection opacity and weak follow-up.
- GANHRI CONTROL
- March 2025 SCA recommended B downgrade; India challenged.
- Alteration of India's accreditation is listed for a November 2026 session.
- SAFE LANGUAGE: unresolved official scrutiny, not a completed downgrade.

CHECK / LIMIT

- CASE CONTROLS
- Paramjit Kaur v. State of Punjab (1999): Court-assigned Article 32 expert role does not erase ordinary PHRA limits.
- N.C. Dhoundial v. Union of India (2003): section 36(2) is jurisdictional
- non-reparation does not make a completed act a daily continuing wrong.
- EEVFAM (2016): unlawful-force allegations require lawful inquiry

FEDERAL / RIGHTS IMPACT

- NHRC is valuable but neither exclusive nor generally binding.
- Court-assigned expertise may exceed the ordinary route, but autonomous statutory action remains bounded by the PHRA.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Court-assigned expertise may exceed the ordinary route, but autonomous statutory action remains bounded by the PHRA.

11

STAGE 11

LIMITS, REFORMS, PYQS AND QUALIFIED VERDICT

LIMITS, REFORMS, PYQS AND QUALIFIED VERDICT

STRUCTURAL LIMITS RECOMMENDATORY OUTPUTS

ONE-YEAR BAR

ARMED-FORCES REPORT ROUTE GOVERNMENT-LINKED INVESTIGATION SUPPORT

FEDERAL AND OVERLAP BOUNDARIES.

PRACTICAL LIMITS VACANCIES

DELAYED REPORTS

UNEVEN SHRC CAPACITY WEAK HUMAN RIGHTS COURT ROUTING

STRUCTURAL LIMITS recommendatory outputs

one-year bar

armed-forces report route government-linked investigation support

federal and overlap boundaries.

PRACTICAL LIMITS vacancies

CONSTITUTIONAL BASIS / ARTICLE

- STRUCTURAL LIMITS recommendatory outputs
- one-year bar
- armed-forces report route government-linked investigation support
- federal and overlap boundaries.
- PRACTICAL LIMITS vacancies

POWER / PROCEDURE

- delayed reports
- uneven SHRC capacity weak Human Rights Court routing
- limited civil-society trust.
- REFORM independent multidisciplinary investigation cadre
- open plural appointments → time-bound reasoned response

CHECK / LIMIT

- grave/concealed-violation limitation reform
- safeguarded armed-forces fact-finding → interoperable referrals.
- PYQ ROUTES
- 2018 umbrella-commission debate
- 2021 limitations and remedies

FEDERAL / RIGHTS IMPACT

- 2023 body-classification support.
- MAINS VERDICT strengthen fact-finding, independence and follow-through without misdescribing NHRC as a court.
- LEGAL/SOURCE LIMIT: The official roster identifies Justice V.
- Ramasubramanian and three full-time members
- GANHRI alteration proceedings remain unresolved.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MAINS VERDICT strengthen fact-finding, independence and follow-through without misdescribing NHRC as a court.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

COMPARATIVE INSTITUTIONAL DESIGN REFINEMENTS

[ANALYSIS] A STRONGER COMMISSION NEED NOT BECOME A COURT.

A CALIBRATED MODEL CAN PRESERVE RECOMMENDATORY INQUIRY WHILE IMPOSING

[ANALYSIS] INDEPENDENCE HAS SEPARATE DIMENSIONS

APPOINTMENT PLURALISM, INVESTIGATIVE AUTONOMY, BUDGET ADEQUACY, SECURITY OF TENURE

A REFORM ANSWER SHOULD DIAGNOSE EACH RATHER THAN USE

[LIMIT] PARIS PRINCIPLES AND GANHRI ACCREDITATION ASSESS INSTITUTIONAL COMPATIBILITY

OPTIONAL DOCTRINE / CASE

- Comparative institutional design refinements
- [ANALYSIS] A stronger commission need not become a court.
- A calibrated model can preserve recommendatory inquiry while imposing a statutory comply-or-give-reasons duty and enabling court escalation on
- [ANALYSIS] Independence has separate dimensions: appointment pluralism, investigative autonomy, budget adequacy, security of tenure and publication/follow-up.

ADVANCED LIMIT

- A reform answer should diagnose each rather than use "toothless" as a substitute for analysis.
- [LIMIT] Paris Principles and GANHRI accreditation assess institutional compatibility
- they do not themselves alter the PHRA, invalidate appointments or convert recommendations into decrees.
- [ANALYSIS] Shared intake standards and reasoned referral can reduce NHRC-SHRC-specialist overlap without erasing constitutional or group-specific mandates.

COMPARATIVE NUANCE

- Comparative institutional design refinements - [ANALYSIS] A stronger commission need not become a court.
- A calibrated model can preserve recommendatory inquiry while imposing a
- statutory comply-or-give-reasons duty and enabling court escalation on default.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels

NHRC AND SHRC • TILE 5/5 • same master rows 8854-12088 of 12088 • end